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Submitter Information

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General Comment

Real human artists have taken their entire lifetime to be able to create what they do. Real human artists have invested heavily in their education, their supplies, and the time it takes to refine a skill. And real human artists deserve to have the final say on what is or isn't fair use for their individual works. Copyright holders must have the right to decide for themselves whether their work can be used to train AI models or not. Any law or ruling that takes that choice away from artists, by forcibly allowing AI as "fair use", is unethical and against the spirit of what copyright is meant to achieve. Any law or ruling that removes artists' rights over their own work will have a profoundly negative and lasting impact on the arts, moreso than AI-generative technology already has. What may benefit business in the short term will hobble the creative industries that we all rely on in the long run. There is no modern business that can exist without the arts; art is marketing, packaging, architecture. Everything humans create with intent can be considered part of the domain of art. To allow art to be recycled and regurgitated without any human sensibility, while refusing to pay real human artists for the "fair use" of their work, is profoundly harmful. This has implications far beyond the American border; your international peers will think poorly of you if you choose to support AI over the rights of real human artists.

As an artist myself, and as someone who primarily hangs out with other artists, I cannot begin to tell you how much harm AI generation has already done to the industry. Incredibly skilled artists now find that they cannot get work, because many businesses are too short-sighted to realize the implications of using AI-generated materials in their advertising and branding. But as artists struggle and give up, as artists have to take retail and food service jobs to pay their bills, the supply of artwork for AI models to claim "fair use" of will dry up, until they have nothing to feed on but each other. The quality of what is sold as "art" will plummet, and historians will look back upon this era as a dark age, a blank spot in human cultural progression.

AI has the potential to be something so much better. Imagine what we could achieve if AI models were leveraged by real human artists, instead of against them? We don't need to continue this trend of pitting technology against the arts, when the two are so intimately entwined. But in order for there to be any kind of mutually beneficial relationship between the two, artists need to have the final say on how their own work is used. Copyright documents need to make explicit whether the copyrighted work is fair for AI models to use. I am certain that some artists will choose to make their work available, but it won't be free, and it shouldn't be stolen.

If you have ever enjoyed a piece of art in your life, if you are as human as the rest of us, you know what the right thing to do is. Please make a choice that we can all live with.